Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1281
Claimant:	Patricia Walker
Adjuster:	Darin Tyler

February 23, 2024 - Claim opened for a side impact collision at a signalized intersection. Insured vehicle was struck on the driver side by a third-party vehicle enternig on a cross street. Police report requested. Initial liability appears to favor our insured based on the scene description, pending witness statements.

March 3, 2024 - Claimant reports shoulder pain following the collision and has since retained counsel. All fruther communication to be directed to claimant's attorney. Medical authorization forms sent to counsel's office. Reocrded statement from claimant deferred per attorney instruction.

March 10, 2024 - Received photos of both vehicles from the insured and the third-party driver. Damage to the insured vehicle concentrated on the driver-side door and quarter panel. Independent appraiser assigned to estimate repair cost. Rental coverage confirmed for the insured.

March 12, 2024 - Spoke with claimant's counsel regarding the status of medical records. Counsel indicates treatment includes evaluation for a shoulder injury and a follow-up scheduled with an orthopedic provider. Records requested. Counsel requested that no direct contact be made with the claimant.

March 18, 2024 - Reviewed the police report and signal timing data. Third-party driver cited for failure to yield on a left turn. Liability assessment updated to reflect primary fault on the third party. Bodily injury evaluation remains open pending receipt of complete medical records and a demand package from counsel.

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Recorded Statement

Claim number:	C-1281
Statement of:	Patricia Walker
Taken by:	Darin Tyler
Date:	February 19, 2024

Q: Thank you for agreeing to give this recorded statement. Please state your full name for the record.

A: I'd rather keep my name off the recording for now, if that's okay. You can use the claim number.

Q: That works. Can you tell me where you were when the collision happened?

A: I was driving trhough the intersection at a major road in Pasadena, Texas. I had a green light, I'm pretty sure of that.

Q: Which direction were you traveling?

A: I was heading straight through, going east.

Q: What happened next?

A: A vehicle coming from the cross street ran the red and hit the driver's side of my car. The impact spun me a little and pushed me toward the curb.

Q: Did you see the other vehicle before the impact?

A: Only for a second. It came out of nowhere, honestly. I hit the brakes, but there wasn't time.

Q: Were you wearing your seatbelt?

A: Yes, I was.

Q: How are you feeling physically since the accident?

A: My right shoulder is pretty bad. I hit the door when the car was hit, and the shoulder took the brunt of it. I can't lift my arm above my head without sharp pain.

Q: Have you seen a doctor or received any treatment?

A: I was taken to the emergency room by ambulance that afternoon. They took X-rays and said there was no fracture, but I've been referred to an orthopedic specialist and I start physical therapy next week.

Q: Is there anything else you'd like to add about the accident?

A: Just that I'm cooperating fully and I want this handled fairly. I have photos of the vehicles and the intersection on my phone, and I can send them to you.

Q: Thank you. That concludes the statement.